

Mukesh Singh Chaturvedi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 29 May 2014 · Writ - C No. 30729 of 2014 · **Writ disposed; relegated to clause 6.5; bill not interfered with**

HEADNOTE

A writ challenging a consumption bill, including on the plea that the meter was defective, raises highly disputed questions of fact for the authority holding the connection records under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not interfere with the bill and will relegate the consumer to that remedy.

FACTUAL SUMMARY

Mukesh Singh Chaturvedi challenged a 20 May 2014 electricity bill issued by Dakshinanchal Vidyut Vitran Nigam Limited. He alleged the meter was defective and the bill could not be raised. The licensee objected that clause 6.5 of the U.P. Electricity Supply Code, 2005 furnished a complete remedy before the authority holding the connection records, which could decide disputed facts. The Division Bench heard counsel for the petitioner, the State, and Dakshinanchal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

A writ challenging an electricity consumption bill, including on the plea that the meter was defective, raises highly disputed questions of fact which the authority holding the connection records must decide under clause 6.5 of the Electricity Supply Code, 2005; the High Court will not interfere with the bill and will relegate the consumer to that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging a consumption bill, including on the plea that the meter was defective, raises highly disputed questions of fact for the authority holding the connection records under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 20.05.2014 BILL AND WHETHER THE METER WAS DEFECTIVE

Writ court did not examine the bill on merits and left the dispute to the clause 6.5 authority. ¶ 1